

26SMCV02209 26SMCV02209

County: los-angeles

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Case Number: 26SMCV02209 Hearing Date: June 26, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

8447 S.M. ASSOCIATES,
LLC,

Plaintiff,

v.

KWAN IL CHOI,

Defendant.

Case No.: 26SMCV02209

Hearing Date: June 26, 2026

[TENTATIVE]

order RE:

defendantS' DEMURRER TO

COMPLAINT

BACKGROUND

This

is an unlawful detainer case. On April 15, 2026, Plaintiff 8447 S.M. Associates, LLC (Plaintiff) filed its form complaint for unlawful detainer against Defendant Kwan Il Choi (Defendant). Plaintiff claims it entered into a commercial lease agreement on April 25, 2013 with Defendant for the lease of Plaintiff's real property located at 8457 Santa Monica Blvd., West Hollywood, California 90069. Plaintiff states Defendant was personally served with a 3-day notice to pay rent or quit (Notice) on April 9, 2026, which included an election of forfeiture, and expired on April 14, 2026. (Compl., ¶¶ 9(a) – (d); 10(a).) Plaintiff alleges that at the time the Notice was served, the amount of rent due by Defendant to Plaintiff totaled an estimated \$56,716.45, and the fair rental value of the premises is \$283.33 per day. (Compl., ¶¶ 13-14.) Plaintiff requests past due rent, reasonable attorney fees, forfeiture of the agreement, and damages. (Compl., ¶ 20.)

On

April 23, 2026, Defendant was personally served with the moving papers. (Proof of Service dated April 27, 2026, ¶ 5(a).)

On

May 5, 2026, Defendant filed his demurrer.

On

June 12, 2026, Plaintiff filed its opposition.

On

June 15, 2026, Defendant filed his reply.

This

hearing is on Defendant's demurrer to the Complaint. Defendant argues that Plaintiff has failed to accurately state facts sufficient to constitute a cause of action for an unlawful detainer action because (1) the Notice is facially defective in that the amount alleged in the Notice is not in strict compliance with California Code of Civil Procedure section 1161, subd. (2) and (2) the complaint is uncertain, ambiguous, and unintelligible. (Demurrer, p. 4:6-9.)

MEET AND CONFER

There is no meet and confer requirement for unlawful detainer proceedings. (Code Civ. Proc. § 430.41, subd. (d)(2).)

LEGAL STANDARD

A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc. § 430.10, subd. (e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

PRELIMINARY

PROCEDURAL ISSUES

Some

California courts have held that “[a] motion to quash service is the only method by which the defendant can test whether the complaint states a cause of action for unlawful detainer.” (Delta Imps. v. Municipal Court (1983) 146 Cal.App.3d 1033, 1036.) However, others have disagreed, holding that a “tenant may not challenge the allegedly defective service of the three-day notice via a motion to quash service of summons because the three-day notice is an element of an unlawful detainer action.” (Borsuk v. Appellate Division of Superior Court (2015) 242 Cal.App.4th 607, 610.)

Notwithstanding

the holding in Delta, in the interests of justice, the Court will consider Defendant’s demurrer on the merits.

DISCUSSION

Failure to State

Facts Sufficient to Constitute a Cause of Action

Defendant argues that Plaintiff has failed to state facts sufficient to constitute an unlawful detainer cause of action. (Demurrer, p. 4:6-7.) Specifically, Defendant challenges the complaint in whole on the ground that the Notice served on Defendant as facially defective pursuant to California Code of Civil Procedure section 1162, subd. (2). (Id. at 3:16-17.) Defendant avers that the Notice served on Defendant is defective because it includes fees, other than the rent itself, such as late fees, legal fees, common area expenses, and Defendant’s share of property taxes which are not to be considered rent. (Id. at 4:13-16.)

California

Code of Civil Procedure section 1166(a) sets forth the pleading requirements of an unlawful detainer complaint. Section 1166(a) states, in relevant part: “The complaint shall: (1) be verified and include the typed or printed name of the person verifying the complaint. (2) Set forth the facts on which the plaintiff seeks to recover. (3) Describe the premises with reasonable certainty. (4) If the action is based on paragraph (2) of section 1161, state the amount of rent in default. (5) State specifically the method used to serve the defendant with

the notice or notices of termination upon which the complaint is based. This requirement may be satisfied by using and completing all items relating to service of the notice or noticed in an appropriate Judicial Council form complaint, or by attaching a proof of service of the notice...of termination served on the defendant.”

Specifically

at issue is the second requirement, and whether Plaintiff’s Notice served on Defendant was defective such that Plaintiff failed to state a cause of action in its complaint.

Generally,

“a tenant is entitled to a three-day notice to pay rent or quit which may be enforced by summary legal proceedings (...§ 1161) but this notice is valid and enforceable only if the lessor strictly complies with the specifically described notice conditions. (... § 1162.)’ [Citation.] Stated another way, ‘[p]roper service on the lessee of a valid three-day notice to pay rent or quit is an essential prerequisite to a judgment declaring a lessor’s right to possession under section 1161, subdivision 2. [Citations.]’ [Citation.] ‘A lessor must allege and prove proper service of the requisite notice. [Citations.] Absent evidence the requisite notice was properly served pursuant to section 1162, no judgment for possession can be obtained. [Citations.]’ [Citation.]” (Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1425; see Liebovich v. Shahrokhkhany (1997) 56 Cal.App.4th 511, [“A lessor must strictly comply with the statutorily mandated requirements for service of a three-day notice to pay rent or quit.”].) “The requirement that the landlord comply with sections 1161 and 1162 by serving the three-day notice on the tenant is undisputed. [Citation.]” (Borsuk, supra, (2015) 242 Cal.App.4th at 611 (citations omitted).)

California

courts distinguish between commercial and residential leases of real property. At issue in this case is a commercial lease for real property, used by lessee Defendant to operate his restaurant business. As such, the statutory authority governing commercial leases controls. Pursuant to California Code of Civil Procedure section 1161.1, subdivision (a), “[w]ith respect to application of Section 1161 in cases of possession of commercial real property after default in the payment of rent: [i]f the amount stated in the notice provided to the tenant pursuant to subdivision (2) of Section 1161 is clearly identified by the notice as an estimate and the amount claimed is not in fact correct, but it is determined

upon the trial or other judicial determination that rent was owing, and the amount claimed in the notice was reasonably estimated, the tenant shall be subject to judgment for possession and the actual amount of rent and other sums found to be due.” Further, “there is a presumption affecting the burden of proof that the amount of rent claimed or tendered is reasonably estimated if, in relation to the amount determined to be due upon the trial or other judicial determination of that issue, the amount claimed or tendered was no more than 20 percent more or less than the amount determined to be due.” (Code Civ. Proc., § 1161.1, subd. (e).) Finally, the required notice may be served on a commercial tenant by delivering a copy to the tenant personally. (Id. at 1162, subd. (b)(1).)

Code of Civil Procedure section 1161, subdivision (2), states in relevant part:

“When

the tenant continues in possession, in person or by subtenant, without the permission of the landlord, ... after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days' notice, excluding Saturdays and Sundays and other judicial holidays, in writing, requiring its payment, stating the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment (provided that, if the address does not allow for personal delivery, then it shall be conclusively presumed that upon the mailing of any rent or notice to the owner by the tenant to the name and address provided, the notice or rent is deemed received by the owner on the date posted, if the tenant can show proof of mailing to the name and address provided by the owner), or the number of an account in a financial institution into which the rental payment may be made, and the name and street address of the institution (provided that the institution is located within five miles of the rental property), or if an electronic funds transfer procedure has been previously established, that payment may be made pursuant to that procedure, or possession of the property, shall have been served upon the tenant and if there is a subtenant in actual occupation of the premises, also upon the subtenant. The notice may be served at any time within one year after the rent becomes due.”

(Id.

at 1161, subd. (2).)

As

to Code of Civil Procedure section 1161, the Court in Canal-Randolph reasoned that “the subdivision refers to the ‘lease or agreement under which the property is held’ and requires the notice state ‘the amount which is due.’ The language is not ‘the amount of rent which is due’ or ‘the rent which is due.’

We think the statutory language is sufficiently broad to encompass any sums due under the lease or agreement under which the property is held.” (Canal-Randolph Anaheim, Inc. v. Wilkoski (1978) 78 Cal. App. 3d 477, 492 (disapproved on other grounds).)

Here,

the Lease signed by the parties states, in relevant part: “Rent Defined: All monetary obligations of Lessee to Lessor under the terms of this Lease are deemed to be rent.” (Compl., Ex. 1 at ¶ 21.) The Notice served on Defendant states the amounts due at the time the Notice was served included base rent, Defendant’s share of property taxes, Plaintiff’s share of common area operating charges, and attorney’s fees incurred in the preparation and service of the notice. (Compl., Ex. 2.) The original Lease stated the base rent in section 1.6(a), and Defendant’s share of the common area operating expenses in 1.6(b), at 21%. (Id., Ex. 1.) Section 60 of the Addendum to the original lease caps Defendant’s share of property taxes at \$360 per month. (Ibid.) Section 13.1 of the Lease states in relevant part: ““Lessor and Lessee agree that if an attorney is consulted by Lessor in connection with Lessee Default or Breach (as hereinafter defined), \$350 is a reasonable minimum sum per such occurrence for legal services and costs in the preparation of and service of notice of Default, and Lessor may include the cost of such services and costs in said notice as rent due and payable to cure said default.” (Ibid.)

Given the broad language pertaining

to commercial leases and the specific language delineating Defendant’s monetary obligations under the lease, the Court finds that the charges included on the Notice do not render the Notice facially deficient. Defendant was under an obligation to pay not only base rent, but also his share of the common area maintenance fee, property taxes up to \$360 per month, and a minimum of \$350 for reasonable legal fees to cure default pursuant to the express terms of the lease, and all were explicitly defined as ‘rent’ in the same agreement. Further, contrary to Defendant’s argument, the inclusion of only estimated expenses is expressly permitted, and the total due and payable to cure default need not be exact or certain. (Code Civ. Proc. § 1161.1, subd. (a).) Plaintiff personally served

Defendant with the Notice in writing on April 9, 2026, which stated he had three days excluding Saturdays, Sundays, and other judicial holidays to pay the total overdue estimated rent payment. (Compl., Ex. 2.) Further, Plaintiff stated the amount due, the name, telephone number, and address of the person to whom the payment should be made, the usual days and hours that person would be available to receive the payment, and the Notice sought only payments owed from September 1, 2025, well within one year of the date the Notice was served.

Additionally,

Plaintiff filed a verified complaint, including the typed name of David Houston, manager of Plaintiff, as the person verifying the complaint. (Compl., p. 4.) Plaintiff described the premises with reasonable certainty by providing the exact street address of the real property at issue and states the amount of rent owed and in default. (Compl., ¶¶ 3(a), 6(a), (d), 13.) Further, the complaint states specifically that Plaintiff served Defendant by personally handing him a copy of the Notice upon which the complaint is based, both on Plaintiff's form complaint and in the proof of service attached as Exhibit 3 to the complaint. (Compl., ¶ 9(a), 10(a); Ex. 3.)

Accordingly,

Plaintiff has stated sufficient facts to constitute an unlawful detainer cause of action and has satisfied all other pleading requirements outlined above.

Finally, the Court does not find that

Plaintiff's form complaint is ambiguous, uncertain, or unintelligible.

CONCLUSION AND ORDER

Based on the foregoing, the Court OVERRULES the demurrer. Defendant is to file an answer within 20 days of this order.

IT IS SO ORDERED.

DATED: June 26, 2026 _____

Edward

B. Moreton, Jr.

Judge

of the Superior Court